

RENFROE v FCA US, LLC

24CV47466

PLAINTIFF'S MOTION FOR ATTORNEY'S FEES COSTS AND EXPENSES

This case stems from the purchase of a motor vehicle by Plaintiff Joshua Renfroe ("Plaintiff"). Defendant is FCA US, LLC ("Defendant.")

I. BACKGROUND

On January 4, 2023, Plaintiff purchased a new 2022 Dodge RAM 2500 diesel truck ("Vehicle.") (Declaration of Shawna M. Melton ("Melton Decl.") ¶ 6.) Between December 13, 2023 (26,072-miles) and March 27, 2024 (30,872-miles), the vehicle was presented at least five times to FCA for the same defect - a Check Engine Light with a loss of power. (*Ibid.*) To address the issues, FCA repeated the same repair, replacing the exhaust pressure differential sensor on December 19, 2023 (26,072-miles), March 15, 2024 (30,452-miles), and again on March 27, 2024 (30,872-miles). (*Ibid.*) FCA failed to repair the defects and to honor necessary needed warranty work, giving rise to additional repairs and concerns after the lawsuit was filed. (*Id.* ¶ 8.) Plaintiff attempted to informally resolve this matter short of litigation by demanding that FCA repurchase his defective vehicle on March 20, 2024 but FCA refused. (*Ibid.*)

On June 28, 2024, Plaintiffs filed the Complaint in this matter. Plaintiff and Defendant settled this matter on June 1, 2025. (Melton Decl. ¶ 5.) On June 2, 2025, judgment was entered in favor of Plaintiff and against FCA in the amount of \$195,000.00 plus reasonable attorney's fees and expenses. (Exhibit A.)

Now before the Court is Plaintiffs' motion for attorney's fees.

II. LEGAL STANDARD

A prevailing party in an action under the Song-Beverly Act may be entitled to reasonable attorney's fees. (Civ. Code § 1794(d).) The calculation of attorney's fees under the Song-Beverly Act is based on the lodestar method, which multiplies the number of hours reasonably expended by a reasonable hourly rate. (*Graciano v. Robinson Ford Sales* (2006) 144 Cal.App.4th 140, 154.) This base figure may then be adjusted by taking into

account various factors, “including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award.” (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 819 [citing *Ketchum v. Moses* (2001) 24 Cal.4th 1122.]) The prevailing party bears the burden “of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount.” (*Id* at 817-818.) A party who qualifies for fees should recover for all hours reasonably spent unless special circumstances render an award unjust. (*Serrano v. Unruh* (1982) 32 Cal.3d 621, 632-633.)

III. Discussion

The parties do not dispute that Plaintiff is the prevailing party in this matter. Rather, Defendant objects to the motion arguing that it seeks excessive fees because this matter was routine, similar to the typical cases that Plaintiff’s counsel handles, and did not involve substantial discovery or motion practice.

Plaintiff seeks between \$60,668.81 - \$80,083.06 in attorney’s fees and costs which includes a requested lodestar multiplier. Defendant objects to the amount of attorney’s fees requested and in particular the request for either a 1.5 or 2.0 multiplier.

According to the documents provided by Plaintiff, the following attorneys provided services in this matter:

O’Connor Law Group (“OLG”)

- Shawna M. Melton has practiced law since 2011 and has been an attorney with OLG since 2023 but previously worked at OLG from 2011 to 2018. (Melton Decl. ¶ 14.) She currently practices predominately consumer law, lemon law, and contract law. Her hourly rate at the relevant time period was \$650. Pursuant to the billing statement provided, Ms. Melton expended a total of 24.7 hours on this matter for a total of \$16,055.00.
- Rebecca Goethals has been a paralegal since 2017. Her hourly rate at the relevant time period was \$225. Pursuant to the billing statement provided, Ms. Goethals expended a total of 2.2 hours on this matter for a total of \$495.00.

- David Womack has been a paralegal since 2016. His hourly rate during the relevant time period was \$200. Pursuant to the billing statement provided, Ms. Goethals expended a total of 8 hours on this matter for a total of \$1600.00.

Reza Law Group (“RLG”)

- Ashkan Reza has practiced in the area of lemon law for twelve years. (Declaration of Ashkan Reza (“Reza Decl.”) ¶ 8.) His rates were \$575 during the relevant time period. Pursuant to the billing statement provided, Mr. Reza expended a total of 24.3 hours on this matter for a total of \$13,972.50.
- Mr. Reza also avers that paralegals worked on this matter as well. His hourly paralegal fees ranged from \$75 to \$225. Pursuant to the billing statement provided, RLG paralegals expended a total of 20.1 hours on this matter for a total of \$4,066.00.

Based on the billing statements provided, the total number of attorney hours expended was 49. The total number of paralegal hours expended was 30.3. The total number of hours billed is therefore 79.3.

1. Hourly Rate

Defendant oppose the hour rates listed for both RLG and OLG attorneys and paralegals. The Court agrees that the rates are not commensurate with the rates charged locally. Further, the Court finds that lemon law cases, such as this, are not highly sophisticated or complex matters but, rather, essentially breach of contract matters. In addition, much of the billed hours include communications with the client and opposing counsel, which do not warrant recovery at an inflated rate.

Accordingly, the Court reduces all of the attorneys’ fees to \$300.00 per hour, and the paralegal rates are reduced to \$125 per hour, both of which are the usual and customary rates in this local market.

2. Hours Billed

Defendant seeks a reduction of 21.1 hours from the Plaintiff’s hours for certain repetitive, simple, or routine activities. For instance, Defendant takes issue with the amount of oversight and review required of routine discovery or the amount of time taken to update clients or the files.

The Court recognizes that given the nature of the work performed by OLG and RLG, there will be often be the use of templates and reliance on prior motions. This is efficiency and common sense. However, the Court is also cognizant that reasonable counsel would not simply be cutting and pasting for each client and that, in the interest of ensuring the accuracy of their representations, must spend some time ensuring that even the templates correspond to the current facts and circumstances.

However, the Court also agrees that this was a relatively straightforward lemon law matter and Plaintiff's counsel has handled numerous cases like this one before. The total number of attorney hours billed is excessive for the type of case, particularly given that this is the primary area in which RLG and OLG practice. Additionally, the Court finds that involving two firms will create a certain amount of overlap and duplication, as well as consultations, none of which should be compensable as "reasonable attorney's fees", which should be limited to the amount of work if a single attorney was involved.

Accordingly, the Court reduces that time billed by ten (10) hours, i.e. 20%. Taking into account a reduction of 10 hours, the total hours awarded will be 39 hours of attorney work and 30.3 paralegal hours.

At an attorney hourly rate of \$300 ($\$300 \times 39 = \$11,700.00$) and a paralegal rate of \$125 ($\$125 \times 30.3 = \$3,787.50$), **the total fees allowed are \$15,487.50.**

3. Multiplier

The court may apply a multiplier based on contingent risk, exceptional skill, or numerous other factors. (*Sonoma Land Trust v. Thompson* (2021) 63 Cal.App.5th 978, 986.) "An enhancement is proper, however, when these factors, though partially reflected in the lodestar, are not *fully* reflected in the lodestar, such as when the attorney displays an extraordinary level of skill that justifies a higher fee or when the particular difficulties of the case require not just more time but more talent, expertise, and quality." (*Id.* at 988.)

While it is true that Plaintiff's counsel took this matter on a contingency basis, there is nothing about the case that required an extraordinary level of skill nor did the case require extra expertise. Accordingly, no multiplier is warranted.

IV. Conclusion

Plaintiff's motion for attorney's fees and costs is **GRANTED. Plaintiff's counsel is awarded \$15,487.50 in fees and \$2,426.06 in costs, for a total of \$17,913.56**

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to submit a formal Order complying with Rule 3.1312 in conformity with this Ruling.

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23CV48292

DEFENDANT'S DEMURRER/MOTION TO STRIKE

This case involves a breach of warranty/lemon law dispute. Now before the Court are a motion to strike and a demurrer filed by Defendant FCA US, LLC.

The same motions were previously before the Court and dismissed without prejudice due to failure to comply with Local Rule 3.3.7. The instant motions again fail to comply with the local rule. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.